

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE, PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENT, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO MUB MIXED-USE WITH BUSINESS EMPHASIS DISTRICT FOR LOT 4, BLOCK 486, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF HUGUR AVENUE AND E. 12TH STREET, APPROXIMATELY 500 FEET NORTHWEST OF THE INTERSECTION OF LOGAN AVENUE AND NATIONWAY).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on January 7, 2013, the City of Cheyenne Planning Commission reviewed the proposed zone change, which is the subject of this ordinance, and determined that a zone change to MUB Mixed-Use with Business Emphasis District meets the criteria specified in Section 2.2.1.d of the Unified Development Code.

Section 2. That the City of Cheyenne Planning Commission recommended, in accordance with Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, that the zoning classification for the real property described as Lot 4, Block 486, Original City, Cheyenne, Wyoming be changed to MUB Mixed-Use with Business Emphasis District

Section 3. That the zoning classification of the real property described in Section 2 of this ordinance is hereby changed to MUB Mixed-Use with Business Emphasis District.

Section 4. That the City Engineer or his designated representative is hereby directed to alter and amend the Adopted Official Zoning Map as described in Section 5.1.3 of the Unified Development Code, to comply with the change of zoning classification as described in Section 3 of this ordinance upon notification by the City Clerk’s office of publication of said ordinance.

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared to be unconstitutional or otherwise invalid, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 6. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____